IN THE HIGH COURT OF DELHI AT NEW DELHI
R.F.A. (OS) No. 412 of 2023

RAMESH SHARMA ... Appellant / Plaintiff
Versus
MODERN REAL ESTATE DEVELOPERS PVT. LTD. ... Respondent / Defendant

CORAM:
HON'BLE MR. JUSTICE R.K. MEHTA

JUDGMENT
1. The present regular first appeal has been filed by the Appellant, Ramesh Sharma, challenging the impugned judgment and decree passed in CS (OS) 890/2020.
2. The dispute pertains to a commercial lease agreement dated 14th January 2021 entered into between Ramesh Sharma and Modern Real Estate Developers Pvt. Ltd. for office premises located at Connaught Place, New Delhi.
3. The appellant paid an advance deposit of Rs. 25,00,000. Under clause 12 of the agreement, possession was to be delivered within 90 days. The respondent completely failed to deliver possession or refund the advance security deposit.
4. The appellant issued statutory legal notice demanding refund along with interest under Section 73 of the Indian Contract Act, 1872.

5. The respondent in its written statement contended that force majeure conditions prevented timely delivery of the premises.
6. The primary legal issue framed by this Court is: Whether the appellant is entitled to refund and damages under Section 73 of the Indian Contract Act, 1872 and interest under Section 34 of the Code of Civil Procedure, 1908.
7. Having perused the commercial lease deed and evidence on record, the plea of force majeure is devoid of merit and an afterthought.
8. CONCLUSION AND FINAL ORDER:
The appeal is hereby allowed. The impugned decree is set aside.
The respondent Modern Real Estate Developers Pvt. Ltd. is directed to refund the principal amount of Rs. 25,00,000 along with interest at 9% per annum to the appellant Ramesh Sharma within sixty days. Suit decreed accordingly.